

Colorado Revised Statutes 2025

TITLE 12 PROFESSIONS AND OCCUPATIONS

ARTICLE 265: NURSING HOME ADMINISTRATORS

Editor's note: This title 12 was repealed and reenacted, with relocations, in 2019. This article 265 was numbered as article 39 of this title 12 prior to 2019. Former C.R.S. section numbers are shown in editor's notes following those sections that were relocated. For a detailed comparison of this title 12, see the comparative tables located in the back of the index or <https://leg.colorado.gov/sites/default/files/images/olls/title-12-2019-table.pdf>.

Cross references: For practicing a profession or operating a business without a license, see § 16-13-306; for rule-making procedures and license suspension and revocation procedures by state agencies, see article 4 of title 24; for an alternative disciplinary action for persons licensed, registered, or certified pursuant to this title 12, see § 24-34-106; for disposition of money collected under this title 12, see §§ 24-35-101 and 24-36-103.

ARTICLE 265
Nursing Home Administrators

12-265-101. Legislative declaration. The general assembly declares that the intent of this article 265 is to provide a measure of protection to the residents of nursing homes in this state who are aged or who have disabilities by establishing a means to regulate nursing home administrators to ensure quality administration and sound management of nursing homes. It is also the intent of the general assembly that the board of examiners of nursing home administrators be adequately funded to carry out the duties and functions specified by this article 265 as well as the legislative intent expressed in this section.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1376, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-101 as it existed prior to 2019.

12-265-102. Applicability of common provisions. Articles 1, 20, and 30 of this title 12 apply, according to their terms, to this article 265.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1377, § 1, effective October 1.

12-265-103. Definitions. As used in this article 265, unless the context otherwise requires:

(1) "Board" means the board of examiners of nursing home administrators created in section 12-265-106.

(2) "Nursing home administrator" means any individual licensed and responsible for planning, organizing, directing, and controlling the operation of a nursing home or who in fact performs these functions, whether or not these functions are shared by one or more other persons.

(3) "Nursing home administrator-in-training" means an individual registered with the board pursuant to the provisions of this article 265.

(4) "Nursing home facility" shall have the same meaning as that set forth in section 25-1-1002 and shall include nursing care facilities, whether proprietary or nonprofit, that are licensed under section 25-1.5-103 (1)(a)(I) or pursuant to the rules for nursing homes promulgated by the department of public health and environment. The term "nursing home" includes but is not limited to nursing homes owned or administered by the state government or any agency or political subdivision thereof.

(5) "Practice of nursing home administration" means the planning, organizing, directing, and control of the operation of a nursing home.

(6) "Reasonable grounds" means facts and circumstances sufficiently strong to warrant a prudent person to believe that the facts and circumstances are true.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1377, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-102 as it existed prior to 2019.

12-265-104. Administrator license required. No person shall practice or offer to practice nursing home administration in this state or use any title, sign, card, or device to indicate that the person is a nursing home administrator, unless the person has been duly licensed as a nursing home administrator as required by this article 265.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1377, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-103 as it existed prior to 2019.

12-265-105. State training school. The nursing home administrator in each of the three state home and training schools at Grand Junction, Pueblo, and Wheat Ridge is not required to be the superintendent of the facility.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1377, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-103.5 as it existed prior to 2019.

12-265-106. Board of examiners of nursing home administrators - creation - subject to termination. (1) (a) The board of examiners of nursing home administrators is hereby created in the division. The board is composed of the following members appointed by the governor:

(I) Three members who are practicing nursing home administrators duly licensed under this article 265, at least one of whom shall be from nonprofit facility administration; and

(II) Two members representative of the public at large.

(b) No more than three of the members of the board shall be officials or full-time employees of state government or local governments. The term of office for each member of the board shall be four years. No member of the board shall serve more than two consecutive terms. All the members of the board shall be residents of this state.

(2) (a) A nursing home administrator is qualified to be appointed to the board if the person:

(I) Is a legal resident of Colorado;

(II) Is currently licensed as a nursing home administrator; and

(III) Has been actively engaged as a licensed nursing home administrator for at least three years.

(b) Notwithstanding subsection (2)(a) of this section, a person convicted of a felony in Colorado or any other state or of violating this article 265 or any law governing the practice of nursing home administration shall not be appointed to or serve on the board.

(3) (a) The governor shall make appointments to the board. In making an appointment to fill a vacancy on the board in the position of, or to fill the remainder of an unexpired term for, a nursing home administrator who is from nonprofit facility administration, as required by subsection (1)(a)(I) of this section, if the governor, after a good-faith attempt, is unable to find a nursing home administrator candidate who comes from nonprofit facility administration to fill the vacancy or complete the unexpired term, the governor may appoint any qualified nursing home administrator to complete the unexpired term or fill the vacancy in that board position. If the appointment is to fill a vacancy, the board member may serve the full term and is eligible for appointment for a second term.

(b) The governor may remove any board member for negligence, incompetency, unprofessional conduct, or willful misconduct. Actions constituting neglect of duty include but are not limited to three unexcused absences from scheduled meetings in any one calendar year. The governor shall fill a vacancy in the membership of the board for the remainder of the unexpired term. A member who is a practicing nursing home administrator or long-term care professional shall serve for a full term only if, during the term, the member is actively employed as a practicing member of his or her profession without a lapse of employment greater than one hundred twenty days.

(4) The board shall elect annually from its membership a chair and vice-chair. The board shall hold two or more meetings each year. At any meeting a majority shall constitute a quorum.

(5) The board is a **type 1** entity, as defined in section 24-1-105, and exercises its powers and performs its duties and functions specified by this article 265 under the department, the executive director, and the division.

(6) The director of the division may appoint, subject to section 13 of article XII of the state constitution, a program director for the board. The program director shall not be a member of the board, but shall have the powers and shall perform the duties prescribed by law and the rules of the board. Additional staff may be appointed by the director of the division to adequately assist the board and the program director in keeping records and in the performance of their duties. These employees, if any, shall be appointed and serve in accordance with section 13 of article XII of the state constitution.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1377, § 1, effective October 1. L. 2022: (5) amended, (SB 22-162), ch. 469, p. 3396, § 132, effective August 10.

Editor's note: Subsection (1) is similar to former § 12-39-104 (1); subsection (2) is similar to former § 12-39-104.5; subsection (3) is similar to former § 12-39-104 (2); subsection (4) is similar to former § 12-39-104 (3); subsection (5) is similar to former § 12-39-104 (4); and subsection (6) is similar to former § 12-39-104 (5), as those sections existed prior to 2019.

Cross references: For the short title (the "Debbie Haskins 'Administrative Organization Act of 1968' Modernization Act") in SB 22-162, see section 1 of chapter 469, Session Laws of Colorado 2022.

12-265-107. Powers and duties of the board - rules. (1) The board has the following powers and duties:

(a) To adopt rules defining standards of nursing home administration, including the responsibilities and duties of nursing home administrators, consistent with this article 265. The standards established in the rules shall be met by individuals in order to receive and retain a license and shall be designed to ensure that nursing home administrators are qualified by education and training in the appropriate field to serve as nursing home administrators.

(b) To develop and apply appropriate techniques, including examinations and investigations, for determining whether an individual meets the standards adopted under subsection (1)(a) of this section;

(c) To issue licenses to individuals determined, after application of the techniques, to meet the standards specified in subsection (1)(a) of this section;

(d) To take disciplinary action against a licensee in accordance with section 12-20-404 or place a temporary license holder on probation in any case where the individual holding any such license is determined to have failed to conform to the standards developed pursuant to subsection (1)(a) of this section or to have committed an act that constitutes grounds for discipline as set forth in section 12-265-113;

(e) To establish and carry out procedures designed to ensure that individuals licensed as nursing home administrators will, during any period that they serve as such, comply with the requirements of the standards specified in subsection (1)(a) of this section;

(f) (I) To conduct investigations, hold hearings, and take evidence in accordance with section 12-20-403.

(II) A person providing documents subpoenaed pursuant to section 12-20-403 (2) shall prepare them from the original record and shall delete from the copy provided pursuant to the subpoena the name of the resident, but shall identify the resident by a numbered code, to be retained by the custodian of the records from which the copies were made. Upon certification of the custodian that the copies are true and complete except for the resident's name, they shall be deemed authentic, subject to the right to inspect the originals for the limited purpose of ascertaining the accuracy of the copies. No privilege of confidentiality shall exist with respect to the copies, and no liability shall lie against the board, the custodian, or the custodian's authorized employee for furnishing or using the copies in accordance with this subsection (1).

(2) (a) The board shall develop rules, with input from long-term care facility provider associations, the department of public health and environment, the office of the state attorney general, and consumer representatives, concerning factors to be considered in determining performance that fails to meet generally accepted standards for nursing home administrators and whether or not remedial or disciplinary actions are warranted. The board may create an advisory committee to assist the board in developing standards that describe the responsibilities and duties of nursing home administrators.

(b) If, after an investigation, the board determines that there are reasonable grounds to believe that the performance of a licensed administrator is inconsistent with the health or safety of residents in the care of the facility in which the administrator works and is contrary to standards adopted by the board, the board may initiate disciplinary action as may be warranted.

(3) The board shall have the authority to make rules pursuant to section 12-20-204 and to take such other actions as may be necessary to enable the state to meet the requirements set forth in section 1908 of the federal "Social Security Act", the federal regulations promulgated thereunder, and other pertinent federal requirements.

(4) The board shall promulgate rules defining the criteria for the education and experience necessary for admittance to the administrator-in-training program. The board shall furnish copies of the appropriate rules to members of the public upon request. The criteria for the education and experience necessary for admittance to the administrator-in-training program shall not exceed successful completion of two years of college level study in an accredited institution of higher education in areas relating to health care or two years of board-approved experience in nursing home administration or comparable health management experience for each year of required education.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1379, § 1, effective October 1.

Editor's note: Subsection (1) is similar to former § 12-39-105 (1); subsection (2) is similar to former § 12-39-105 (3); subsection (3) is similar to former § 12-39-105 (4); and subsection (4) is similar to former § 12-39-107.5, as those sections existed prior to 2019.

12-265-108. Qualifications for admission to examination. (1) The board shall admit to examination for licensure as a nursing home administrator any applicant who pays a fee as determined by the board, submits evidence of suitability prescribed by the board, is twenty-one years of age or older, and provides written documentation that the applicant meets one of the following requirements:

(a) The applicant has successfully completed the administrator-in-training program pursuant to section 12-265-109; or

(b) The applicant has successfully completed a bachelor's degree or higher degree in public health administration or health administration, a master's degree in management or business administration, or any degree or degrees deemed appropriate by the board; or

(c) (I) The applicant has successfully completed an associate's degree or higher degree in a health-care-related field or a bachelor's degree in business or public administration and has a minimum of one year of experience in administration in a nursing home or hospital. For the purposes of this section, a registered nurse who is a graduate of a three-year diploma program meets the associate degree requirement.

(II) For purposes of the experience required by this subsection (1)(c), an applicant must have day-to-day, on-site responsibility for supervising, directing, managing, monitoring, or exercising reasonable control over subordinates for one year.

(2) If the applicant fails to provide evidence satisfactory to the board that the applicant meets the requirements of subsection (1) of this section, the applicant shall not be admitted to take the licensing examination, and the applicant shall not be entitled to or be granted a license as a nursing home administrator.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1381, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-106 as it existed prior to 2019.

12-265-109. Administrator-in-training - rules. (1) The board may grant admission into the nursing home administrator-in-training program to an applicant for a nursing home administrator's license who meets the board's criteria for education and experience, pursuant to section 12-265-107 (4). Upon successful completion of the one-thousand-hour training period, the applicant is eligible to take the examination.

(2) Every nursing home administrator-in-training shall register the fact of the training with the board in accordance with the rules and on forms provided by the board.

(3) The board shall, by rule, establish a monitoring mechanism that will provide oversight of the administrator-in-training program, including a requirement that an administrator-in-training submit periodic progress reports to the board.

(4) The board may waive any portion required by subsection (1) of this section if it finds that the applicant has prior experience or training sufficient to satisfy requirements established by rule of the board.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1382, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-107 as it existed prior to 2019.

12-265-110. Licenses - temporary licenses - renewal - fees - rules. (1) Any license issued by the board pursuant to this article 265 is subject to the renewal, expiration, reinstatement, and delinquency fee provisions specified in section 12-20-202 (1) and (2). Any person whose license has expired shall be subject to the penalties provided in this article 265 or section 12-20-202 (1).

(2) Only an individual who has qualified as a licensed nursing home administrator under the provisions of this article 265 and who holds a valid current license pursuant to the provisions of this section has the privilege of using the title "nursing home administrator" and the right and the privilege of using the abbreviation "N.H.A." after the person's name.

(3) The board shall maintain a list of all licensed nursing home administrators, which list shall show: The place of residence, the name and age of each licensee, any action taken by the board, the number of the license issued to the licensee, and such other pertinent information as the board may deem necessary. The department of regulatory agencies shall keep a list of applicants who are denied.

(4) The board may issue a temporary license to an applicant for a period not to exceed six months. The board shall promulgate rules for the issuance of a temporary license.

(5) A temporary license shall be granted to an applicant who is employed as a hospital administrator by a general hospital licensed or certified by the department of public health and environment. The temporary license shall be granted for a period not to exceed twelve months and shall be void at such time as the license holder is no longer employed by the general hospital.

(6) The board shall establish, pursuant to section 12-20-105, and publish annually a schedule of fees for the licensing of nursing home administrators.

(7) Each licensee shall, within thirty days, notify the board of any conviction of a felony or the acceptance of a guilty plea or a plea of nolo contendere to a felony.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1382, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-108 as it existed prior to 2019.

12-265-111. Examinations. (1) The board shall determine the subjects of the state examination for all applicants for licensure as nursing home administrators.

(2) Examinations shall be held at least semiannually at such times and places as the board shall designate. Any examination shall be prepared or approved by the board.

(3) The board shall have the authority to select and administer a national examination.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1383, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-109 as it existed prior to 2019.

12-265-112. Licensure by endorsement. The board shall issue a license by endorsement to an applicant who satisfies the requirements of the occupational credential portability program.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1384, § 1, effective October 1. **L. 2020:** Entire section amended, (HB 20-1326), ch. 126, p. 542, § 35, effective June 25.

Editor's note: This section is similar to former § 12-39-110 as it existed prior to 2019.

Cross references: For the short title ("Red Tape Reduction Act") and the legislative declaration in HB 20-1326, see sections 1 and 2 of chapter 126, Session Laws of Colorado 2020.

12-265-113. Grounds for discipline. (1) The board has the power to take disciplinary or other action as specified in sections 12-20-404 and 12-265-107 (1)(d) upon proof that the person:

- (a) Has procured or attempted to procure a license by fraud, deceit, misrepresentation, misleading omission, or material misstatement of fact;
- (b) Has been convicted of a felony or pled guilty or nolo contendere to a felony. A certified copy of the judgment of conviction by a court of competent jurisdiction shall be prima facie evidence of the conviction. In considering a possible revocation, suspension, or nonrenewal of a license or temporary license, the board shall be governed by the provisions of sections 12-20-202 (5) and 24-5-101.
- (c) Has had a license to practice nursing home administration or any other health-care occupation suspended or revoked in any jurisdiction. A certified copy of the order of suspension or revocation shall be prima facie evidence of the suspension or revocation.
- (d) Has violated or aided or abetted a violation of any provision of this article 265, an applicable provision of article 20 or 30 of this title 12, any rule adopted under this article 265, or any lawful order of the board;
- (e) Has committed or engaged in any act or omission that fails to meet generally accepted standards for nursing home administration practice or licensure;
- (f) Has falsified or made incorrect entries or failed to make essential entries on resident records;
- (g) Has a substance use disorder, as defined in section 27-81-102, abuses or engages in the habitual or excessive use of any such habit-forming drug or any controlled substance as defined in section 18-18-102 (5), or participates in the unlawful use of controlled substances as specified in section 18-18-404; except that the board has the discretion not to discipline the licensee if the person is participating, in good faith, in a substance use disorder treatment program approved by the board;
- (h) Has a physical disability or an intellectual and developmental disability that renders the licensee unable to practice nursing home administration with reasonable skill and safety to the residents and that may endanger the health or safety of persons under the licensee's care;
- (i) Has violated the confidentiality of information or knowledge as prescribed by law concerning any resident;
- (j) Has violated section 18-13-119 concerning the abuse of health insurance;
- (k) Has failed to post in the nursing home facility in a conspicuous place and in clearly legible type a notice giving the address and telephone number of the board and stating that complaints may be made to the board;
- (l) Has practiced as a nursing home administrator without a license;
- (m) Has used in connection with the person's name any designations tending to imply that the person is a licensed nursing home administrator, unless the person in fact holds a valid license;
- (n) Has practiced as a nursing home administrator during a period when the person's license has been suspended or revoked;
- (o) Has sold, fraudulently obtained, or furnished a license to practice as a nursing home administrator, or has aided or abetted therein; or

(p) Has failed to respond in an honest, materially responsive, and timely manner to a complaint filed against the person.

(2) The board need not find that the actions that are grounds for discipline were willful or negligent, but it may consider the same in determining the nature of disciplinary sanctions to be imposed.

(3) The board may send a letter of admonition to a licensee under the circumstances specified in and in accordance with section 12-20-404 (4).

(4) If the board finds the charges proven and orders that discipline be imposed, it may also require the licensee to participate in a treatment program or course of training or education as a requirement for reinstatement as may be needed to correct any deficiency found in the hearing.

Source: **L. 2019:** Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1385, § 1, effective October 1. **L. 2020:** (1)(g) amended, (SB 20-007), ch. 286, p. 1412, § 35, effective July 13. **L. 2023:** (1)(n), (1)(o), and (3) amended and (1)(p) added, (SB 23-155), ch. 327, p. 1961, § 3, effective June 2.

Editor's note: This section is similar to former § 12-39-111 as it existed prior to 2019.

12-265-114. Withholding or denial of license - hearing. The board has the authority, pursuant to article 4 of title 24, to determine whether an applicant for a license or a temporary license to practice as a nursing home administrator possesses the qualifications required by this article 265, or whether there are reasonable grounds to believe that the applicant has done any of the acts set forth in section 12-265-113 as grounds for discipline. As used in this section, "applicant" does not include a person seeking the renewal of a license.

Source: **L. 2019:** Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1386, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-112 as it existed prior to 2019.

12-265-115. Mental and physical examination of licensees. (1) (a) If the board has reasonable grounds to believe that a licensee or temporary license holder is unable to practice with reasonable skill and safety to residents because of a condition described in section 12-265-113 (1)(g) or (1)(h), it may require the person to submit to a mental or physical examination by a physician or other licensed health-care professional it designates. Upon the failure of the person to submit to the mental or physical examination, unless due to circumstances beyond the person's control, the board may suspend the person's license until the person submits to the required examinations.

(b) Every licensee or temporary license holder, by engaging in the practice of nursing home administration in this state or by applying for the renewal of a license or temporary license, shall be deemed to have given consent to submit to a mental or physical examination when so directed in writing by the board. The direction to submit to an examination shall contain the basis

of the board's reasonable grounds to believe that the licensee is unable to practice with reasonable skill and safety to residents because of a condition described in section 12-265-113 (1)(g) or (1)(h). The licensee shall be deemed to have waived all objections to the admissibility of the examining physician's or other licensed health-care professional's testimony or examination reports on the ground of privileged communication.

(2) Nothing in this section shall prevent the licensee from submitting testimony or examination reports of a physician or other licensed health-care professional designated by the licensee that pertains to a condition described in section 12-265-113 (1)(g) or (1)(h) that may be considered by the board in conjunction with, but not in lieu of, testimony and examination reports of the physician or other licensed health-care professional designated by the board.

(3) The results of any mental or physical examination ordered by the board shall not be used as evidence in any proceeding other than one before the board and shall not be deemed public records nor made available to the public.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1387, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-113 as it existed prior to 2019.

12-265-116. Disciplinary proceedings - administrative law judge - judicial review - publicly recorded votes. (1) Disciplinary proceedings may be commenced when the board has reasonable grounds to believe that a licensee under the board's jurisdiction has committed acts in violation of section 12-265-113.

(2) Disciplinary proceedings shall be conducted in the manner prescribed by section 12-20-403 and article 4 of title 24, and the hearing and opportunity for review shall be conducted pursuant to those laws by the board or an administrative law judge, at the board's discretion.

(3) No previously issued license to engage in the practice of nursing home administration shall be revoked or suspended until a hearing has been conducted pursuant to section 24-4-105 or, for emergency situations, pursuant to section 24-4-104 (4). The denial of an application to renew an existing license shall be treated in all respects as a revocation.

(4) (a) Complaints, investigations, hearings, meetings, or any other proceedings of the board conducted pursuant to the provisions of this article 265 and relating to disciplinary proceedings are exempt from the provision of any law requiring that proceedings of the board be conducted publicly or that the minutes or records of the board with respect to action of the board taken pursuant to the provisions of this article 265 be open to public inspection; except that this exemption applies only when the board, or an administrative law judge acting on behalf of the board, specifically determines that it is in the best interest of a complainant or other recipient of services to keep the proceedings or documents relating thereto closed to the public, or if the licensee is violating section 12-265-113 (1)(g), participating in good faith in a substance use disorder treatment program approved by the board or designed by the board to end any addiction or dependency specified in that section, and the licensee has not violated any provisions of the board order regarding participation in such a treatment program. If the board determines that it is in the best interest of a complainant or other recipient of services to keep the proceedings or

documents relating thereto closed to the public, then the final action of the board is open to the public without disclosing the name of the client or other recipient.

(b) Section 12-20-408 governs judicial review of final board actions and orders appropriate for judicial review.

(5) The board may send a confidential letter of concern to a licensee under the circumstances specified in section 12-20-404 (5).

(6) All votes to impose discipline or dismiss a complaint must be recorded in the board's publicly available minutes and indicate how each board member voted on the question.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1387, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-114 as it existed prior to 2019.

12-265-117. Temporary advisory committees - immunity. (1) The board may appoint temporary advisory committees, including temporary professional review committees, to assist in the performance of its duties with respect to individual investigations. Each temporary advisory committee shall consist of at least three licensees who have expertise in the area under review. Members of temporary advisory committees shall receive no compensation for their services but shall be reimbursed for the actual and necessary expenses incurred in the performance of their duties.

(2) If a professional review committee is established pursuant to subsection (1) of this section to investigate the quality of care being given by a person licensed pursuant to this article 265, the committee shall include in its membership at least three persons licensed in the same category as the licensee under review, but the committee may be authorized to act only by the board.

(3) In addition to the persons specified in section 12-20-402, any member of a professional review committee, any member of the committee's staff, any person acting as a witness or consultant to the committee, any witness testifying in a proceeding authorized under this article 265, and any person who lodges a complaint pursuant to this article 265 is granted the same immunity, and is subject to the same conditions for immunity, as specified in section 12-20-402.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1389, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-115 as it existed prior to 2019.

12-265-118. Unauthorized practice - penalties. Any person who practices or offers or attempts to practice as a nursing home administrator without an active license issued under this article 265 is subject to penalties pursuant to section 12-20-407 (1)(a).

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1389, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-116 as it existed prior to 2019.

12-265-119. Cease-and-desist orders. The board may issue cease-and-desist orders under the circumstances and in accordance with the procedures specified in section 12-20-405.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1389, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-117 as it existed prior to 2019.

12-265-120. Injunctive proceedings. The board may seek injunctive relief through the attorney general or the district attorney in accordance with section 12-20-406, but only to enjoin any person who does not possess a currently valid or active nursing home administrator's license from committing any act declared to be unlawful or prohibited by this article 265. In any action taken pursuant to this section, the court shall not require the board to post a bond.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1391, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-118 as it existed prior to 2019.

12-265-121. Administration of nursing homes relying on treatment by spiritual means. A person who serves as an administrator of a nursing home conducted exclusively for persons who rely upon treatment by spiritual means alone, through prayer in accordance with the creed or tenets of a church or religious denomination, shall be exempt from the provisions of this article 265.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1391, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-119 as it existed prior to 2019.

12-265-122. Records. The board shall keep formal records of all complaints it receives and of the final disposition of the complaints. The board shall be responsible for implementing a tracking system to facilitate the retrieval of the records.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1391, § 1, effective October 1.

Editor's note: This section is similar to former § 12-39-120 as it existed prior to 2019.

12-265-123. Repeal of article - review of functions. This article 265 is repealed, effective September 1, 2028. Before the repeal, the licensing functions of the board are scheduled for review in accordance with section 24-34-104.

Source: L. 2019: Entire title R&RE with relocations, (HB 19-1172), ch. 136, p. 1391, § 1, effective October 1. **L. 2023:** Entire section amended, (SB 23-155), ch. 327, p. 1960, § 2, effective June 2.

Editor's note: This section is similar to former § 12-39-121 as it existed prior to 2019.